

states that Carlyle and Commercial Lender have never been Toorak's agent. For instance, he states, "There is no contract or agreement to establish such an agency relationship, there are no documents to establish such an agency relationship, there have been no written communications between Carlyle and Toorak, Toorak has not exercised any control over Carlyle, nor did it have any right to exercise such control, nor is there any course of conduct to establish such an agency relationship." (Tyde Dec., ¶ 13.) However, Plaintiffs have met their shifted burden of providing evidence to create a triable issue of fact as to whether Carlyle and Commercial were Toorak's agent. (Plaintiffs' response to TMF 1-24.)

The motion is denied.

Moving parties shall give notice of this ruling.

### **Motions for Summary Judgment/Adjudication #2**

Defendant and Cross-Defendant Loan Funder, LLC (Loan Funder) and Defendant, Cross-Defendant, and Cross-Complainant Athene Annuity and Life Company (Athene) also move for summary judgment/adjudication against Plaintiffs as to Plaintiffs' FAC and Plaintiffs' SACC. For the following reasons, the motion for summary judgment/adjudication is DENIED.

### **Evidentiary Objections**

Both Plaintiffs and Toorak filed evidentiary objections. Plaintiffs' objections to the declarations of Marsha Malozemova and Eric Abramovich are overruled. The remainder of objections are not material to the disposition of the motion. (Code Civ. Proc. § 437c(q).) Loan Funder and Athene's evidentiary objections are overruled.

### **Request for Judicial Notice**

Athene and Loan Funder ask the Court to take judicial notice of 8 documents: Plaintiffs' Complaint, the February 24, 2022 Amendment to Complaint, the September 3, 2020 Deed of Trust, the February 1, 2021 Deed of Trust, the Complaint in 1202 Bayside, LLC v. Kaz Investments Management, Inc.; Diyar Irvine, LLC et al. (Case No. 30-2017-00952720-CU-OR-CJC), the FAC filed in this matter, the SACC filed in this matter, and the January 3, 2022 Assignment of Deed of Trust.

The request for judicial notice is granted, but not as to the truth of the contents of those documents. (Evid. Code § 452(c), (d), and (h); *Richtek USA, Inc. v. UPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.)

Plaintiffs ask the Court to take judicial notice of the Stipulated Final Judgment and Order for Permanent Injunction and Equitable Relief, Federal Trade Commission v. American Consulting Group, LLC, et al., United States District Court, Central District of California, Southern Division, Case No. SACV12-01561 DOC (JPRx), filed on September 18, 2013, and 2) the Felony Complaint Warrant, People v. Shady Kamal Elzoheiry and Andrew Nader Abas, Superior Court of California, County of Orange, Central Justice Center, Case No. OCDA RE21110003. The request for judicial notice is granted, but not as to the truth of the contents of those documents. (Evid. Code § 452(c), (d), and (h); *Richtek USA, Inc. v. UPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.)

#### **Statement of Law**

A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . . .” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at 851.)

A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc. (“CCP”), § 437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381–82 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18–19 [respondent only required to defeat allegations reasonably contained in the complaint].)

A cause of action “cannot be established” if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (*Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action “cannot be established” by submitting evidence—such as discovery admissions and responses—that the plaintiff does not have and cannot reasonably obtain evidence to

establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield Co.* (1995) 25 Cal.4th at 854-55; *see also Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; *Scheiding v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information]; *Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1441-42 [same].)

Once the moving party meets that burden, the burden shifts to the party opposing MSJ to show, by reference to specific facts, the existence of a triable issue as to that affirmative defense or cause of action. (*Id.*; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.) To meet this burden, the opposing party must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (*Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland* (2001) 92 Cal.App.4th 1247, 1260.)

### **Merits**

Athene and Loan Funder's motion identifies three grounds on which it seeks summary judgment.

Ground No. 1: Plaintiffs' Claims Against Defendants for Cancellation of Diyar's 2020 and 2021 Loans/Liens on Diyar's Dolphin Properties, and the 2020 Loan/Lien on Green City's Ocean Property Fail Because Shady Elzoheiry had Actual Authority, Based on Acquiescence and Ratification, to Enter Into the Loans/Liens on behalf of Diyar and Green City.

Ground #2: Plaintiffs' Slander of Title Claims against Athene fail because Athene: did not publish anything as to Plaintiffs' Properties; did not publish anything false and defamatory; did not cause Plaintiffs any special pecuniary loss to Plaintiffs by any publication; and did not publish anything with malicious intent.

Ground #3: Plaintiffs' Slander of Title Claims against Loan Funder fail because Loan Funder: did not publish anything as to the 1207 Dolphin Property or the Ocean Property; its Sole Recorded Document, an Assignment as to the 1215 Dolphin Property, is not false or defamatory, and is privileged; did not cause special pecuniary loss to Plaintiffs by any publication; and did not publish anything with malicious intent.

### **Issue Number 1**

Athene and Loan Funder contend that Shady had actual authority, based on acquiescence and ratification, to enter into the loans/liens on behalf of Diyar and Green City. The Court has already discussed this argument at length in connection with Toorak's motion. That discussion largely applies to Athene and Loan Funder's argument on this issue. Athene and Loan Funder contend that Plaintiffs had constructive knowledge of the 2018 Resolution, but the law requires that a principal have full knowledge in order to establish ratification. Loan Funder and Athene have not established sufficient facts to show that Plaintiffs' "ignorance of the facts arises from the principal's own failure to investigate and the circumstances are such as to put a reasonable man on inquiry." (*Reusche v. California Pacific Title Ins. Co.* (1965) 231 Cal.App.2d 731, 737.) As discussed in connection with Toorak's motion, Plaintiffs have met their shifted burden of establishing a triable issue of material fact as to ground 1. (PMF 52, 60, 70-110, 125-140; 148-10.)

### **Issue Numbers 2 and 3**

Under California law, a claim for slander of title has four elements: (1) "a publication;" (2) "which is without privilege or justification and thus with malice, express or implied;" (3) "is false, either knowingly so or made without regard to its truthfulness;" and (4) "causes direct and immediate pecuniary loss." (*Howard v. Schaniel* (1980) 113 Cal. App. 3d 256, 263; *Manhattan Loft, LLC v. Mercury Liquors, Inc.* (2009) 173 Cal. App. 4th 1040, 1051.)

"Ordinarily, the question of agency is one of fact; however, where the evidence is undisputed the issue becomes one of law." (*Magnecomp Corp. v. Athene Co.* (1989) 209 Cal.App.3d 526, 536; see *Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 642, fn. 19 [agency is generally a question of fact, but the issue may be decided as a matter of law if the undisputed facts negate any such relationship]; *Harley-Davidson, Inc. v. Franchise Tax Bd.* (2015) 237

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|    |                        | <p>Cal.App.4th 193, 214 [existence of agency is question of fact unless evidence is susceptible of only one inference].)</p> <p>Athene and Loan Funder contend that Plaintiffs’ slander of title claims fail because they did not publish anything as to Plaintiffs’ properties, they did not publish anything false and defamatory, they did not cause any special pecuniary loss to Plaintiffs by any publication, and they did not publish anything with malicious intent.</p> <p>Plaintiffs have provided evidence to create a triable issue of whether Carlyle was Loan Funder’s Agent. (PMF 156-193.) They have also provided evidence to create a triable issue regarding the remaining elements of the slander of title cause of action, including whether the deeds of trust assigned to Athene and Loan Funder were published with malice and without privilege. (PMF 119-156-193.)</p> <p>Moving parties shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                               |
| 12 | White v. Walmart, Inc. | <p><b>TENTATIVE RULING:</b></p> <p><b><u>Demurrer and Motion to Strike</u></b></p> <p>Defendant Walmart Inc. demurs to and moves to strike portions of the Complaint filed by Plaintiff Robbie D. White. For the following reasons, the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. The motion to strike is rendered moot by the ruling on the demurrer.</p> <p><b><u>Analysis</u></b></p> <p><b>1) <u>Compliance with Code of Civil Procedure Section 430.41</u></b></p> <p>A party demurring or moving to strike a pleading is required to meet and confer “in person or by telephone” with the party that filed the pleading under Section 430.41. (Code Civ. Proc. § 430.41.) Here, MP’s counsel satisfied this requirement. (Axsom Dec.)</p> <p><b>2) <u>General Principles</u></b></p> <p>A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it</p> |

remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (*Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413.)

On demurrer, a complaint must be liberally construed. (Code Civ. Proc., § 452; *Stevens v. Superior Court* (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (*Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 966-67.)

A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. The degree of detail required depends on the extent to which the defendant in fairness needs such detail which can be conveniently provided by the plaintiff. Less particularity is required when the defendant ought to have co-extensive or superior knowledge of the facts. Under normal circumstances, there is no need for specificity in pleading evidentiary facts. However, bare conclusions of law are insufficient. (Code Civ. Proc., §§ 425.10(a), 459; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-50; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1126; *Doheny Park Terrace HOA v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1098-99; *Berger v. California Insurance Guarantee Assn* (2005) 128 Cal.App.4th 989, 1006.)

### **3) Overlength Opposition**

In a non-summary judgment motion, the opening brief and opposition are limited to 15 pages, absent prior leave of court. (Cal. Rules Ct., Rule 3.1113(d).) No reply or closing memorandum may exceed 10 pages. (*Ibid.*) Plaintiff's Opposition is 17 pages, and Plaintiff did not obtain leave of court to file an over-length brief. Rule 3.1113(g) states that an over length brief shall be treated the same as a late filed brief (i.e., the court has discretion not to consider the brief pursuant to Cal. Rules Ct., Rule 3.1300(d), though if the court refuses to consider a brief because it is late, it must note this in the minute order.) Here, the Court exercises its discretion to consider the entire Opposition.

### **4) Request for Judicial Notice**

Defendant filed a request for judicial notice of the docket and the February 8, 2022, Findings and Recommendations in case number 2:20-cv-02383-TLN-AC filed by Plaintiff in the U.S. District Court,

Eastern District of California, styled as “*White v. City and County of West Sacramento*.” The court grants this request. (Evid. Code § 452(d).) The Court has already continued the hearing on this matter for Plaintiff to have an opportunity to address this request for judicial notice.

#### 5) Merits

A statute of limitations period generally begins to run after a cause of action accrues, which is when the plaintiff discovers, or has reason to discover, the existence of the claim. (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1318; *Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 389.) “Where a claim is time-barred on its face, the plaintiff must specifically plead facts that would support equitable tolling.” (*Long v. Forty Niners Football Co., LLC* (2019) 33 Cal.App.5th 550, 555.)

The first cause of action alleges Defendant violated the Unruh Civil Rights Act. Under the Unruh Civil Rights Act, for denial of “full and equal accommodations, advantages, facilities, privileges, or services in all business establishments” on the basis of race or national origin, as Plaintiff is alleging here, the statute of limitations is two years. (*Gatto v. County of Sonoma* (2002) 98 Cal.App.4th 744, 759.)

The second cause of action is based on the Ralph Civil Rights Act, Civil Code § 51.7, which is part of the Unruh Act and is also subject to a two-year statute of limitations. (*Gatto, supra*, 98 Cal.App.4th at 760.)

The third cause of action is based on the Bane Act, which is subject to a two-year statute of limitations. (Code Civ. Proc., § 335.1; *Gatto, supra*, 98 Cal.App.4th at 760.)

The fourth cause of action for defamation is subject to a one year statute of limitations. (Code Civ. Proc., § 340, subd. (c); see *Hebrew Academy of San Francisco v. Goldman* (2007) 42 Cal.4th 883, 895.)

The fifth cause of action for intentional infliction of emotional distress is subject to a two year statute of limitations. (*Wassmann v. South Orange County Community College District* (2018) 24 Cal.App.5th 825, 853.) And the sixth cause of action for negligent infliction of emotional distress is subject to a one year statute of limitations. (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 323.)

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|  | <p>Thus, Plaintiff’s claims are governed either by a one or two year statute of limitations.</p> <p>According to the FAC, Defendant’s allegedly wrongful conduct occurred on May 26, 2023. (FAC, ¶¶ 7-18.) Plaintiff filed this action on June 9, 2025 – over two years after the allegedly wrongful conduct.</p> <p>Arguing that the claims are not time barred, Plaintiff relies on Code Civ. Proc. § 352(a), which provides:</p> <p style="padding-left: 40px;">If a person entitled to bring an action ... is, at the time the cause of action accrued either under the age of majority or lacking the legal capacity to make decisions, the time of the disability is not part of the time limited for the commencement of the action.</p> <p>(Code Civ. Proc., § 352(a).)</p> <p>The FAC alleges:</p> <p style="padding-left: 40px;">19. The applicable statutes of limitation were subject to suspension pursuant to Code of Civil Procedure § 352(a) because, following the incident, Plaintiff experienced multiple debilitating conditions, both concurrently and sequentially, that materially and functionally impaired his ability to manage legal affairs and meaningfully assess or pursue his legal rights. This medically documented diagnosis and physician advisements constituted a factual condition of disability that existed during the periods alleged herein and cannot be resolved as a matter of law at the pleading stage.</p> <p style="padding-left: 40px;">20. Following the incident, Plaintiff experienced a severe mental and physical health crisis that materially and functionally impaired his ability to manage legal affairs and meaningfully assess or pursue his legal rights.</p> <p style="padding-left: 40px;">21. Specifically, from late 2023 through July 2025, Plaintiff was under continuous medical care for the following conditions:</p> <p style="padding-left: 80px;">a. Severe trauma-related psychological conditions, including Post-Traumatic Stress Disorder and Major Depressive Disorder, resulting in clinically documented impairments in concentration, executive functioning, and emotional regulation, as reflected in Kaiser Permanente mental health records.</p> <p style="padding-left: 80px;">b. A debilitating inguinal hernia requiring surgical intervention and resulting in post-operative complications that</p> |
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imposed sustained physical pain, functional limitation, and medical restrictions.

c. These conditions collectively created a functional impairment that materially and substantially impaired Plaintiff's ability to comprehend, evaluate, and effectively pursue his legal rights during the relevant periods.

Generally, "[a] demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar ... to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42 [internal citations omitted]).

However, it is a "well-recognized proposition that if on the face of the complaint the action appears barred by the statute of limitations, plaintiff has an obligation to anticipate the defense and plead facts to negative the bar. (*Union Carbide Corp. v. Superior Court* (1984) 36 Cal.3d 15, 25 [internal citations omitted].) "[P]laintiff must plead facts which show an excuse, tolling, or other basis for avoiding the statutory bar ...." (*Spray, Gould & Bowers v. Associated Internat. Ins. Co.* (1999) 71 Cal.App.4th 1260, 1266 fn. 4.) Put another way, "the 'plaintiff must "plead around" the defense, by alleging specific facts that would avoid the apparent defense. Absent such allegations, the complaint is subject to demurrer for failure to state a cause of action ....' " (*Gentry v. eBay, Inc.* (2002) 99 Cal.App.4th 816, 824.)

The issue is whether the FAC pleads " 'specific facts,' " which, if proven, could support a finding that Plaintiff lacked legal capacity at the time Plaintiff's claims accrued. (*Gentry, supra*, 99 Cal.App.4th at p. 824.) For purposes of Section 352, a plaintiff lacks capacity if they are incapable of caring for his or her property or transacting business or understanding the nature or effects of his or her acts. (*Alcott Rehabilitation Hospital v. Superior Court* (2001) 93 Cal.App.4th 94, 101.)

Plaintiff alleges he experienced "debilitating conditions, both concurrently and sequentially (FAC, ¶19), but Plaintiff is required to "plead facts to negative the [statute of limitations] bar." (*Union Carbide, supra*, 36 Cal.3d at p. 25; see also *Gentry, supra*, 99 Cal.App.4th at p. 84.) The FAC does not plead specific facts showing that Plaintiff lacked legal capacity on May 26, 2023. Instead, the FAC alleges on multiple occasions that Plaintiff's alleged incapacity began "following the incident." (FAC, ¶¶ 19 and 20.) More specifically, Plaintiff alleges facts regarding his alleged incapacity

that relate to “late 2023 through July 2025.” (FAC, ¶ 21.)

Further, Defendant has provided judicially-noticeable documents that show that Plaintiff was actively litigating in federal court during his alleged mental and physical health crisis. Specifically, on the date of the incident in this matter, May 26, 2023, Plaintiff filed a motion to change venue in the Eastern District of California. (Defendant’s Request for Judicial Notice, Exhibit 1.) The May 26, 2023, filing may reflect, in part, work that was done prior to the filing date. However, over the course of the next several months, Plaintiff filed at least 7 more pleadings. (Ibid.) Specifically, Plaintiff filed an Opposition on May 30, 2023, another Opposition on June 5, 2023, Objections to a Magistrate’s findings and recommendations, a Reply on August 24, 2023, a Motion for Reconsideration on September 21, 2023, a Motion to Change Venue on September 21, 2023, and a Motion to Stay on October 13, 2023. (Ibid.)

In his supplemental opposition, Plaintiff provides a copy of the October 13, 2023, Motion to Stay. That Motion, filed almost five months after the incident at issue, contains four pages of coherent argument. That Motion sought an indefinite stay for several reasons. First, Plaintiff argued that his “mental health has deteriorated significantly due to the relentless threats, the impact of the case on his personal safety, and the apparent hostility from the court.” (Plaintiff’s Supplemental Declaration.) Plaintiff also stated that he had received death threats that forced him to move multiple times, and that Plaintiff did not receive due process. (Ibid.) True, Plaintiff claimed in the Motion to Stay that “Plaintiff is unable to function or make any case decision and has already informed the Defense of this in the attached letter.” (Id.) However, the letter attached to the Motion to Stay – and the content of the pleading itself – negate Plaintiff’s claim that he was unable to function. Rather than showing an incapability of caring for Plaintiff’s property or a lack of understanding of the effects of his actions, the Motion shows that Plaintiff was able to draft and send a letter to defense counsel and formulate a multifaceted argument to the Court.

The judicially-noticeable docket and Plaintiff’s own supplemental declaration belie Plaintiff’s claim that he lacked capacity at the time of the incident. Several other courts have similarly found that a party’s prior litigation history may negate a party’s claim of incapacity. (See, e.g., *McColm v. Santa Clara County* (N.D. Cal., Jan. 15, 1997, No. C-95-20856-JW) 1997 WL 33016, at \*2 [finding that Plaintiff’s litigation activity is relevant for purposes of determining Plaintiff’s capacity under Code Civ. Proc. § 352]; see also *Est. of Blue v. County of Los Angeles* (9th Cir. 1997) 120 F.3d

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|    |  | <p>982, 984 [taking judicial notice of court filings in a related case to affirm the district court's decision to dismiss the plaintiff's complaint as untimely and deny the plaintiff equitable tolling]; <i>Willis v. Lathrop Const. Associates</i> (N.D. Cal., Feb. 25, 1998, No. C 97-3203 SI) 1998 WL 118184, at *1, <i>aff'd</i> (9th Cir. 1999) 172 F.3d 61 [“Defendants have filed various motions to dismiss, and have included requests for judicial notice, which are granted, concerning prior lawsuits and files handled by plaintiff during the years between 1982 and now. Based upon these lawsuits and files, it is clear that plaintiff has been able to “transact business” and “understand the nature or effects of his acts” within the meaning of § 352(a).”]; <i>Quan v. Smithkline Beecham Corp.</i> (9th Cir. 2005) 149 Fed.Appx. 668, 670 [“The facts that Plaintiff had hired a lawyer and filed a separate employment discrimination action are matters of undisputed public record, of which we can take judicial notice. [Citation.] Plaintiff's ability to attend to such matters demonstrates that he is not insane within the meaning of the statute.”].)</p> <p>On demurrer, a court determines whether the complaint states facts sufficient to constitute a cause of action. If the court sustains the demurrer, it must decide whether to grant leave to amend. Leave to amend should be granted if there is a reasonable possibility that the defect can be cured by amendment. Plaintiff has the burden of proving that there is a reasonable possibility that the defect can be cured by amendment. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.)</p> <p>Here, Plaintiff has not satisfied his burden of proving that there is a reasonable possibility that the defect in the pleading can be cured by amendment. Thus, the demurrer is sustained without leave to amend.</p> <p>Defendant to give notice.</p> |
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